

Chapter 18

TAXATION*

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***Cross references**—Administration, Ch. 2; department of finance, § 2-181 et seq.; division of tax collection responsible for collecting all utility rates and charges and all taxes, § 2-185; division of finance, § 2-186; assessing division, § 2-262; waiver of permit fee for registration of vehicles, § 19-2.

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ARTICLE I. IN GENERAL**Sec. 18-1. Tax lien procedures.**

This section is enacted under the authority of RSA 80:87. The provisions of RSA 80:58 through RSA 80:86, setting forth procedures to establish real estate tax liens are adopted.

Sec. 18-2. Transfer of tax liens.

(a) Pursuant to RSA 80:80(I), the city manager is authorized to sell real estate tax liens, after approval by city council, prior to the expiration of the two (2) year statutory right of redemption.

(b) Pursuant to RSA 80:80(III), the city manager is authorized, after appropriate affirmative vote by the city council to do so, to transfer real estate tax liens or tax deeded property, as justice may require.

(c) This section shall remain in effect until repealed by city council.

(Ord. No. 403, 12-16-99)

Secs. 18-3—18-25. Reserved.**ARTICLE II. EXEMPTIONS*****DIVISION 1. PROPERTY TAX EXEMPTION FOR THE
LEGALLY BLIND****Sec. 18-26. Definitions.**

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Legally blind shall be as determined by the blind services department of the vocational rehabilitation division of the education department.

*State law reference—Exemptions, RSA 72:11 et seq.

Residential real estate shall mean the real estate which the person qualified for an exemption thereunder occupies as his principal place of abode together with any land or buildings appurtenant thereto and shall include a house trailer if used for such purpose.

(Ord. No. 263, Art. I, 5-14-86)

Sec. 18-27. Property tax exemption for the blind.

In accordance with RSA 72:37, the city shall provide for the exemption from property tax, for every inhabitant who is legally blind each year from tax on his residential real estate to the value of fifteen thousand dollars (\$15,000.00).

(Ord. No. 263, Art. II, 5-14-86)

Sec. 18-28. Application for blind exemption.

Applicants for the exemption provided in this division shall file with the assessor on or before April 15 of some year a permanent application therefor, signed under penalty of perjury, on a form approved and provided by the state tax commission showing that the applicant is duly qualified and is the true and lawful owner of the property.

(Ord. No. 263, Art. III, 5-14-86)

Sec. 18-29. Examination of application.

(a) Upon receipt of an application for blind exemption, the assessor shall examine it as to the right to the exemption, the ownership of the property listed, and, if necessary, the encumbrances reported.

(b) For those exemptions having income or asset limitations, the assessing official may request true copies of the applicant's federal income tax form, state interest and dividends tax form, or property tax inventory form filed in any other town, as needed to verify eligibility.

(Ord. No. 263, § IV, 5-14-86)

Sec. 18-30. Granting the exemption.

The assessing official shall grant the exemption provided for in this division if he is satisfied the applicant has not willfully made any false statement in the application for the purpose of obtaining the exemption; and the applicant cooperated with his requests under section 18-29, if it applied.

(Ord. No. 263, Art. V, 5-14-86)

Sec. 18-31. Appeal from refusal to grant exemption.

Whenever the assessing official refuses to grant an exemption under this division to which the applicant may be entitled, the applicant may appeal in writing within six (6) months of receipt of the tax bill to the board of tax and land appeals, which may order an exemption or an abatement if a tax has been assessed.

(Ord. No. 263, Art. VI, 5-14-86)

Secs. 18-32—18-41. Reserved.**DIVISION 2. PROPERTY TAX CREDIT FOR VETERANS*****Sec. 18-42. Definitions.**

For the purposes of this division, the following definitions shall apply:

Certain disabled veteran shall mean a resident who shall have been discharged from military service of the United States under conditions other than dishonorable or an officer who is honorably separated from military service, who is totally and permanently disabled as a result of service-connected injury, illness or disability as defined by state or federal law or regulation, or who is a double amputee of the upper or lower extremities or any combination thereof, paraplegic, or has blindness of both eyes with visual acuity of 5/200 or less as a result of service connection and who owns a specially adapted

***Editor's note**—Ord. No. 486, § 1, adopted September 12, 2007, repealed the former Div. 2, §§ 18-42—18-49, and enacted a new Div. 2, §§ 18-42—18-48, as set out herein. Former Div. 2 was entitled "Property Tax Exemption for Veterans." See also the Code Comparative Table.

homestead which has been acquired with the assistance of the Veterans Administration or which has been acquired using proceeds from the sale of any previous homestead which was acquired with the assistance of the Veterans Administration, or the resident's surviving spouse.

Principal place of abode shall mean the place to which the applicant always intends to return and the place which is ready and available for occupancy when he or she does return. It is not a seasonal home, camp or place of retreat.

Resident shall mean a person who has resided in this state for at least one (1) year preceding April 1 in the year in which the tax credit is claimed.

Residential real estate shall mean the real estate which the person qualified for a credit occupies as his or her principal place of abode together with any land or buildings appurtenant thereto and shall include a house trailer if used for such purpose.

Surviving spouse shall mean the surviving spouse of any person who was killed or died while on active duty in the Armed Forces of the United States or any of the Armed Forces of any of the governments associated with the United States in the wars, conflicts or armed conflicts, or combat zones listed herein. The term "surviving spouse" shall not include a surviving spouse that has remarried, but if the surviving spouse is later divorced, his or her status as the surviving spouse is regained. If the surviving spouse remarries and the new husband or wife dies, he or she shall be deemed the widow or widower of the latest spouse and shall not revert to the status of a surviving spouse of a veteran.

Totally disabled veteran shall mean a resident who has been honorably discharged from the military service of the United States or who shall have been discharged from military service of the United States under conditions other than dishonorable or an officer who is honorably separated from military service and who has been determined by an applicable military or

veterans' authority to be totally and permanently disabled as a result of service-connected injury, illness or disability as defined by state or federal law or regulation.

Veteran for purposes of this division shall mean a resident who served not less than ninety (90) days in the Armed Forces of the United States in any qualifying war or armed conflict listed herein and was honorably discharged; a resident who earned the Armed Forces expeditionary medal for any other war or armed conflict which has occurred as set forth in RSA 72:28, and was honorably discharged or an officer honorably separated from service; or a resident who was terminated from the Armed Forces because of a service-connected disability.
(Ord. No. 486, § 1, 9-12-07)

Sec. 18-43. Credit amount and qualifications.

(a) In accordance with RSA 72:28, the city shall provide for a credit for veterans from property tax, that every inhabitant who is a veteran or the surviving spouse of a veteran shall be exempt each year from tax on his/her residential real estate in the amount of five hundred dollars (\$500.00).

(b) This credit shall be subtracted each year from the tax on his or her residential property. However, the surviving spouse of a resident who suffered a service-connected death may have the sum subtracted from the property tax on any real property in the municipality where the surviving spouse is a resident.

Qualifying war or armed conflict shall mean:

Spanish War, between April 21, 1898, and April 11, 1899;

Philippine Insurrection, between April 12, 1899, and July 4, 1902 (extended to July 15, 1903 for service in the Moro Provinces);

Boxer Rebellion, between June 16, 1900, and May 2, 1901;

World War I, between April 6, 1917, and November 11, 1918 (extended to April 1, 1920 for service in Russia; provided that military or naval service on or after November 12, 1918, and

before July 2, 1921, where there was prior service between April 6, 1917, and November 11, 1918, shall be considered as World War I service);

World War II, between December 7, 1941, and December 31, 1946;

Korean Conflict, between June 25, 1950, and January 31, 1955;

Viet Nam Conflict, between December 22, 1961, and May 7, 1975;

Viet Nam Conflict, between July 1, 1958, and December 22, 1961 (if the resident earned the Viet Nam service medal or the Armed Forces expeditionary medal);

Persian Gulf War, between August 2, 1990, and the date thereafter prescribed by presidential proclamation or by law; and

Any other war or armed conflict that has occurred since May 8, 1975, and in which the resident earned an Armed Forces expeditionary medal or theater of operations service medal.

(c) No credit shall be granted to a resident otherwise qualified for credit who is delinquent in the payment of any taxes due, except to a resident, or the surviving spouse of a resident, whose service in the Armed Forces was ended for a service-connected disability.

(d) If both husband and wife each qualify for a credit under this division, they shall receive a credit each year from taxation upon their residential real estate in the amount of two hundred fifty dollars (\$250.00) in taxes.

(Ord. No. 486, § 1, 9-12-07; Ord. No. 577, § 1, 10-14-2020; Ord. No. 618, § 1, 11-8-2023)

Sec. 18-44. Credit for totally disabled veterans.

(a) In accordance with RSA 72:35, the city shall provide any veteran who has been honorably discharged or an officer honorably separated from military service and who has a total and permanent service-connected disability, or who is a double amputee or paraplegic because of service-connected injury, or

the surviving spouse of such person a credit each year from tax on his/her residential real estate in the amount of one thousand four hundred dollars (\$1,400.00).

(b) This credit may be applied only to property which is occupied as the principal place of abode by the disabled person or the surviving spouse. The credit may be applied to any land or buildings appurtenant to the residence or to manufactured housing if that is the principal place of abode.

(c) Any person applying for the credit under this division shall furnish sufficient proof to the assessor that the disability on which the credit is based is service connected. The credit shall be divided evenly among the number of tax payments required annually so that a portion of the credit shall apply to each tax payment to be made.

(Ord. No. 486, § 1, 9-12-07)

Sec. 18-45. Credit for certain disabled veterans.

In accordance with RSA 72:36-a, the city shall provide that certain disabled veterans, as defined in section 18-42, upon satisfactory proof of such service connection and disability, or such person's surviving spouse, shall be exempt from all taxation on said homestead.

(Ord. No. 486, § 1, 9-12-07)

Sec. 18-46. Application for credit.

(a) Applicants shall file with the assessor on or before April 15, a permanent applicant therefore, signed under penalty of perjury, on a form approved and provided by the commissioner of revenue administration showing that the applicant is duly qualified and is the true and lawful resident of the property on which the credit is claimed.

(b) Any person who changes his or her residence after filing such a permanent application shall file an amended permanent application on or before December 1 immediately following his/her change of residence. The filing of the permanent applica-

tion shall be sufficient for such persons to receive these credits on an annual basis so long as the applicant does not change his or her residence.

(c) If any person otherwise qualified to receive a credit shall satisfy the assessor that he was prevented by accident, mistake or misfortune from filing a permanent application or amended permanent application on or before April 15 of the year in which he desires the credit to begin, the assessor may receive such application at a later date and grant a credit thereunder for that year, but no such application shall be received or credit granted after the local tax rate has been approved for that year.

(Ord. No. 486, § 1, 9-12-07; Ord. No. 577, § 1, 10-14-2020)

Sec. 18-47. Examination of application.

(a) Upon receipt of an application for credit under this division, the assessor shall examine it as to the right to the credit, the ownership of the property listed, and, if necessary, the encumbrances reported.

(b) The assessor may request true copies of documents indicating the applicant's qualifying service and proof of honorable discharge from duty, uncharacterized discharge based on a service-connected injury, illness or disability, or honorable separation if an officer. Submission of any of the documents as set forth in RSA 21:50, I(b) may be used to establish an applicant's status as a veteran. Any documents submitted shall be considered confidential, handled so as to protect the privacy of the applicant, and returned to him at the time a decision is made on the application.

(c) The assessor shall grant the credit if he or she is satisfied that the applicant has not willfully made any false statement in the application for the purpose of obtaining the credit and the applicant cooperated with requests to furnish the aforementioned documents to verify eligibility.

(Ord. No. 486, § 1, 9-12-07)

Sec. 18-48. Appeal from refusal to grant credit.

Whenever the assessor refuses to grant an applicant a credit to which he or she may be entitled under the provisions of this

division, such applicant may appeal in writing on or before September 1 following the date of notice of tax under RSA 72:1-d to the board of tax and land appeals or the superior court, which may order a credit or an abatement if a tax has been assessed. (Ord. No. 486, § 1, 9-12-07)

Secs. 18-49—18-51. Reserved.

DIVISION 3. PROPERTY TAX EXEMPTION FOR THE
DISABLED*

Sec. 18-52. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Disabled shall mean any person who is eligible under Title II or Title XVI of the Federal Social Security Act for benefits to the disabled.

Net assets means the value of all assets, tangible and intangible, minus the value of any good faith encumbrances.

Residence means the housing unit, and related structures such as an unattached garage or woodshed, which is the person's principal home, and which the person in good faith regards as home to the exclusion of any other places where the person may temporarily live. "Residence" shall exclude attached dwelling units and unattached structures used or intended for commercial or other nonresidential purposes. (Ord. No. 353, 10-13-93; Ord. No. 454, § 1, 10-13-04)

Sec. 18-53. Exemption for the disabled.

(a) In accordance with New Hampshire RSA 72:37-b, the city shall provide for the exemption for disabled persons from property tax, that every inhabitant who is entitled shall be

***Editor's note**—Ord. No. 454, §§ 1—3, adopted Sept. 22, 2004, amended sections 18-52—18-54 to read as set out herein. Section 4 of Ord. No. 454 provided for an effective date of April 1, 2005 for these amendments.

granted a thirty-five thousand dollars (\$35,000.00) property value exemption based upon the following additional eligibility criteria:

- (1) Applicant must have owned the residence individually or jointly, or if the residence is owned by a spouse, they must have been married for at least five (5) consecutive years preceding April 1 of the year in which the exemption is claimed;
- (2) Applicant must have had, in the calendar year preceding April 1 of the year in which the exemption is claimed, an annual net income from all sources of less than twenty-four thousand seven hundred dollars (\$24,700.00), if single, [or] a combined annual net income of less than thirty-three thousand three hundred dollars (\$33,300.00), if married. Such net income is to be determined by deducting from all monies received from any source whatsoever the amount or sum of any life insurance paid on the death of an insured, expenses and costs incurred in the course of conducting a business enterprise, [and/or] proceeds from the sale of assets; and
- (3) Applicant's net assets, as defined in RSA 72:37-b III(b), excluding the value of the residence and the land upon which it is located up to the greater of two (2) acres or the minimum single family residential lot size for that zone as specified in the city's zoning ordinance, must not exceed forty-four thousand dollars (\$44,000.00).

(b) This exemption may be applied only to property which is occupied as the principal place of abode by the disabled person. The exemption may be applied to any land or buildings appurtenant to the residence or to manufactured housing if that is the principal place of abode.

(c) Any person applying for the exemption under this division shall furnish sufficient proof to the assessor of eligibility under the Federal Social Security Act for benefits to the disabled. The exemption shall be divided evenly among the number of tax payments required annually so that a portion of the exemption shall apply to each tax payment to be made.

(Ord. No. 353, 10-13-93; Ord. No. 454, § 2, 10-13-04; Ord. No. 579, § 1, 10-28-2020; Ord. No. 602, § 1, 11-9-2022; Ord. No. 616, § 1, 11-8-2023; Ord. No. 632, § 1, 8-14-2024)

Sec. 18-54. Application.

Any person who desires to apply for this exemption must file with the city assessor by April 15 following the date of the notice of tax under RSA 72:1-d, a permanent application therefore, signed under penalty of perjury, on a form approved and provided by the commissioner of revenue administration, showing that the applicant is the true and lawful owner of the property on which the exemption is claimed and that the applicant was duly qualified upon April 1 of the year in which the exemption is first claimed.

(Ord. No. 353, 10-13-93; Ord. No. 353, 1-14-98; Ord. No. 454, § 3, 10-13-04; Ord. No. 579, § 2, 10-28-2020)

Sec. 18-55. Examination of application.

(a) Upon receipt of an application for exemption under this division, the assessor shall examine it as to the right to the exemption, the ownership of the property listed and, if necessary, the encumbrances reported.

(b) For those exemptions having income or asset limitations, the assessor may request true copies of any federal income tax form, state interest and dividends tax form, and property tax inventory form filed in any other town to verify eligibility. Any documents submitted shall be considered confidential, handled so as to protect the privacy of the applicant, and returned to him at the time a decision is made on the application.

(c) The assessor shall grant the exemption if he is satisfied that the applicant has not wilfully made any false statement in the application for the purpose of obtaining the exemption, and the applicant cooperated with his requests to furnish the aforementioned documents to verify eligibility, if applicable.

(Ord. No. 353, 10-13-93)

Sec. 18-56. Appeal from refusal to grant exemption.

Whenever the assessor refuses to grant an applicant an exemption to which he may be entitled under the provisions of this division, such applicant may appeal in writing, within six

(6) months of receipt of the tax bill, to the board of tax and land appeals which may order an exemption or an abatement if a tax has been assessed.

(Ord. No. 353, 10-13-93)

Sec. 18-57. Proration of exemption.

If any entitled person or persons shall own a fractional interest in residential real estate, each such entitled person shall be granted exemption in proportion to his interest therein with other persons so entitled.

(Ord. No. 353, 10-13-93)

DIVISION 4. PROPERTY TAX EXEMPTION FOR THE ELDERLY*

Sec. 18-58. Exemption amount and qualifications.

In accordance with RSA 72:39-a and RSA 72:39-b, the city shall provide an exemption from real estate taxes, beginning in the tax year commencing April 1, 2023, for those individuals qualified for such exemption under RSA 72:39-a and RSA 72:39-b, as they may be amended from time to time, in the following manner:

- (1) For a person sixty-five (65) years of age up to seventy-five (75) years of age..... \$54,000.00
- (2) For a person seventy-five (75) years of age up to eighty (80) years of age..... \$90,000.00
- (3) For a person eighty (80) years of age or older..... \$138,000.00
- (4) To qualify, an unmarried taxpayer must have a net income of not more than twenty-six thousand five hundred

***Editor's note**—Ord. No. 487, § 1, adopted September 12, 2007, designated § 18-58 as Div. 4 and added the title of said Div. 4.

dollars (\$26,500.00), or if married, must have a combined net income of not more than thirty-five thousand dollars (\$35,000.00). Net assets for either an unmarried taxpayer or, if married, combined assets must be not more than seventy-two thousand five hundred dollars (\$72,500.00), exclusive of the value of the taxpayer's residence and the land upon which it is located up to the greater of two (2) acres or the minimum single-family residential lot specified in the Claremont Zoning Ordinance for the zone in which the property lies. The combined net asset amount shall apply to a surviving spouse until the sale or transfer of the property by the surviving spouse or until the remarriage of the surviving spouse.

- (5) In addition, to qualify for an exemption under this section, the taxpayer must have been a resident of New Hampshire for at least three (3) consecutive years, own the real estate individually or jointly, or, if the real estate is owned by such person's spouse, they must have been married to each other for a least five (5) consecutive years.

(Ord. No. 397, 3-10-99; Ord. No. 433, 4-10-02; Ord. No. 487, § 2, 9-12-07; Ord. No. 552, §§ 1, 2, 1-25-2017; Ord. No. 578, §§ 1, 2, 10-14-2020; Ord. No. 601, §§ 1, 2, 11-9-2022; Ord. No. 617, § 1, 11-8-2023)

Sec. 18-59. Application for exemption.

(a) Applicants shall file with the assessor on or before April 15 of the year preceding the setting of the tax rate, a permanent application therefor, signed under penalty of perjury, on a form approved and provided by the commissioner of revenue administration, showing that the applicant is duly qualified on April 1 of the year in which the exemption is first claimed and is the true and lawful owner of the property on which the exemption is claimed.

(b) Any person who changes residence after filing such a permanent application shall file an amended permanent application on or before December 1 immediately following the change of residence. The filing of the permanent application shall be

sufficient for such persons to receive these exemptions on an annual basis so long as the applicant does not change his residence.

(c) If any person otherwise qualified to receive an exemption shall satisfy the assessor that he or she was prevented by accident, mistake or misfortune from filing a permanent application or amended permanent application on or before April 15 of the year in which he or she desires the exemption to begin, the assessor may receive such application at a later date and grant an exemption for that year, but no such application shall be received or exemption granted after the local tax rate has been approved for that year.

(Ord. No. 487, § 3, 9-12-07)

Sec. 18-60. Appeal from refusal to grant exemption.

Whenever the assessor refuses to grant an applicant a credit to which he or she may be entitled under the provisions of this division, such applicant may appeal in writing on or before September 1 following the date of notice of tax under RSA 72:1-d to the board of tax and land appeals or the superior court, which may order a credit or an abatement if a tax has been assessed. (Ord. No. 487, § 4, 9-12-07)

Secs. 18-61—18-70. Reserved.

**DIVISION 5. PROPERTY TAX EXEMPTION FOR
RENEWABLE ENERGY SYSTEMS***

Sec. 18-71. Adoption and applicability.

The city hereby adopts by reference the provisions of RSA 72:62 (Solar Energy Systems), RSA 72:66 (Wind-Powered Energy Systems), and RSA 72:69 (Woodheating Energy Systems), including any amendments thereto that may be adopted from time to time.

***Editor's note**—Ord. No. 564, § 1, adopted Feb. 27, 2019, set out provisions intended for use as §§ 18-61—18-63. To preserve the numbering style of this Code, and at the editor's discretion, these provisions have been included as Div. 8, §§ 18-71—18-73.

The provisions of this division 5 shall apply solely to renewable energy systems where the renewable energy system is located on the same parcel as the structure or structures for which it provides renewable energy. Property tax exemptions under this division 5 shall not apply to any renewable energy system that is the primary use of a property and/or does not provide renewable energy solely for use at a structure or structures at the immediate site on the same parcel.
(Ord. No. 564, § 1, 2-27-2019)

Sec. 18-72. Definitions.

Renewable energy systems eligible for a property tax exemption under this division 5 are those as defined by RSA 72:61 (Solar), RSA 72:65 (Wind) and RSA 72:69 (Wood), including any amendments thereto that may be adopted from time to time.
(Ord. No. 564, § 1, 2-27-2019)

Sec. 18-73. Application and exemption amount.

(a) No property owner shall be entitled to a property tax exemption for a renewable energy system under this division 5 unless the property owner has filed a permanent application with the assessor pursuant to RSA 72:33, including any amendments that may be adopted thereto from time to time.

(b) A property tax exemption for a renewable energy system may be granted to the property owner by the assessor in an amount up to the assessed value of the applicable renewable energy system.
(Ord. No. 564, § 1, 2-27-2019)

